

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MOBILE MANOR, LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2015-CC-

MARLIN J. YODER a/k/a MARLIN JAY
YODER and ANY UNKNOWN TENANT(s),
Defendants.

**COMPLAINT SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLLP d/b/a COLONIAL MOBILE MANOR, sues the Defendants, MARLIN J. YODER a/k/a MARLIN J. YODER and ANY UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

**COUNT I
ACTION FOR POSSESSION**

1. This is an action for removal of mobile home park lot tenants and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability limited partnership owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, MARLIN J. YODER, is a natural person believed to own a double wide mobile home located at 900 - 9th Avenue East, Lot #168, Palmetto, Manatee County, Florida, 34221.
4. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 - 9th

Avenue East, Lot #168, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, known as COLONIAL MOBILE MANOR, including Lot #168.

6. Plaintiff, as landlord, leased to Defendant, MARLIN J. YODER, Lot #168 of the above stated mobile home park at a monthly rental fee of \$412.00 for a term of one (1) year, pursuant to Florida Statute §723.031.

7. Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), reside in the mobile home located at Lot #168 of Colonial Mobile Manor, 900 - 9th Street East, Palmetto, Florida.

8. The Defendant, MARLIN J. YODER, has violated the Rules and Regulations of Colonial Mobile Manor, more specifically, Rule #7 as to Lot & Home Maintenance. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

9. On July 14, 2014, July 28, 2014, January 12, 2015 and February 5, 2015, the Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), were notified by certified mail, return receipt requested, that they were in violation of Rule #7, quiet enjoyment and by failing to maintain the landscape outside the residence. Said Defendants were provided seven (7) days to correct the non-compliance. Copies of the letters and certification is attached to this Complaint as Plaintiff's Exhibit B.

10. On February 5, 2015, the Plaintiff served on Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), a fourth notice pursuant to Florida Statute §723.061(c), of the termination of said Defendants right to reside on the premises of the Plaintiff based upon their having failed to correct the violation. A copy of the Notice of Violation of Park Regulations (Second

Notice) and certification are attached hereto as Plaintiff's Exhibit C.

11. As of the date of the filing of this Complaint, the Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), have not complied with the Rules and Regulations of Colonial Mobile Manor, Rule #7 entitled Lot and Home Maintenance.

12. Plaintiff, COLONIAL MOBILE MANOR, has incurred damages caused by Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), to said property by their failure to maintain the landscaping and by using the exterior of the premises for storage.

13. Plaintiff has not accepted rent from Defendant, MARLIN J. YODER, for the months of February, March and April, 2015.

14. The Defendant, MARLIN J. YODER, additionally owes lot rental late fees . Further, if MARLIN J. YODER is determined by the Court to be a tenant at sufferance, he will be indebted to Plaintiff in an amount determined by the Court pursuant to Florida Statute.

15. ANY UNKNOWN TENANT(s), may reside or have an interest in Lot #168 of COLONIAL MOBILE MANOR but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

16. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, MARLIN J. YODER and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

17. This is an action seeking less than \$5,000.00 excluding costs, interest and attorney fees.

18. Plaintiff re-alleges the facts contained within paragraphs 1 through 16 as though fully set forth herein.

19. Defendant, MARLIN J. YODER, owes the Plaintiff the total sum of \$1,236.00 plus interest, costs of maintenance to the lot, court costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, MARLIN J. YODER, for damages, costs, and attorney fees.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

20. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

21. The Plaintiff re-alleges the facts contained within paragraphs 1 through 16 and paragraph 19 as though fully set forth herein.

22. Defendant, MARLIN JAY YODER, is the registered owner of:

a 1979 mauve NOBILITY HOMES, INC. double wide mobile home, Vehicle Identification No. N21287A, Decal No. 18333458 and Vehicle Identification No. N21287B, Decal No. 18333468

located on Lot #168 of the property leased by the Plaintiff to the Defendants.

23. Upon the Defendant being determined to owe damages, costs and attorneys fees to Plaintiff, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendants for unpaid rent, utility bills, late fees, maintenance fees, court costs and a

reasonable attorney fee for the pursuit of this eviction and for related relief.

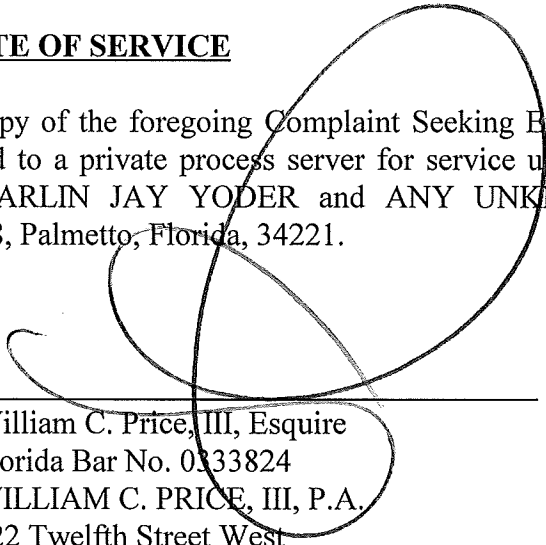
23. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

24. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, MARLIN J. YODER, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, MARLIN J. YODER a/k/a MARLIN JAY YODER and ANY UNKNOWN TENANT(s) at 900 - 9th Avenue East, Lot #168, Palmetto, Florida, 34221.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: wcprice@wcpriceiipa.com
Attorney for Plaintiff